

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Bok	Team: Team # 7	CCRB Case #: 200705419	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/10/2007 10:00 PM	Location of Incident: 310 E. 112th Street; 310 E. 113th Street; Inside the 23rd Precinct	18 Mo. SOL 10/10/2008	Precinct: 23
Date/Time CV Reported Fri, 04/13/2007 5:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/19/2007 3:44 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christop Greiner	30355	930271	NARCBBS
2. Officers			
3. POM Joseph Curley	28295	928138	023 PCT
4. SSA Jose Roman	03076	890887	023 PCT
5. POM Jose Toribio	10268	932039	023 PCT
6. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Christop Greiner	Abuse: In front of 310 East 112th Street in Manhattan, PO Christopher Greiner stopped § 87(2)(b)	A . Exonerated
B . POM Jose Toribio	Abuse: In front of 310 East 112th Street, PO Jose Toribio stopped § 87(2)(b)	B . Exonerated
C . POM Christop Greiner	Force: In front of 310 East 112th Street and 310 East 113th Street in Manhattan, PO Christopher Greiner used physical force against § 87(2)(b)	C . Exonerated
D . POM Jose Toribio	Force: In front of 310 East 112th Street in Manhattan, PO Jose Toribio used physical force against § 87(2)(b)	D . Exonerated
E . SSA Jose Roman	Force: In front of 310 East 112th Street in Manhattan, Sgt. Jose Roman used physical force against § 87(2)(b)	E . Exonerated
F . POM Joseph Curley	Force: In front of 310 East 112th Street and 310 East 112th Street in Manhattan, PO Joseph Curley used physical force against § 87(2)(b)	F . Exonerated
G . Officers	Force: In front of 310 East 112th Street and 310 East 113th Street in Manhattan, officers used physical force against § 87(2)(b)	G . Officer(s) Unidentified
H . An officer	Force: At 310 East 113th Street in Manhattan, an officer struck § 87(2)(b) with a radio.	H . Unfounded
I . An officer	Abuse: At the 23rd Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)	I . Officer(s) Unidentified

Synopsis

§ 87(2)(b) made a complaint to IAB on April 13, 2007. The complaint was received by the CCRB on April 19, 2007. The following synopsis of § 87(2)(b)'s complaint is based on an interview conducted with § 87(2)(b). On April 10, 2007, at approximately 10:00PM, § 87(2)(b) parked his car, which he left running, in front of 310 East 112th Street between First and Second Avenue in Manhattan. As § 87(2)(b) exited a nearby store, a Hispanic man he later learned to be a police officer approached him. § 87(2)(b) noticed a gun on the man's waist and immediately ran, believing that he was about to be robbed. § 87(2)(g)

Four officers allegedly began punching and kicking § 87(2)(b) as he curled up defensively. § 87(2)(g)

§ 87(2)(b). The top of § 87(2)(b)'s head was exposed and he allegedly felt repeated blows striking him there (allegation G). An officer allegedly struck § 87(2)(b) on his left elbow with what he surmised was a radio, which allegedly caused a gash (allegation H). This officer remains unidentified. The officers then placed § 87(2)(b) in handcuffs, at which point § 87(2)(b) realized that the men were police officers. An officer allegedly dragged § 87(2)(b) by his jacket, causing his palms to scrape on the ground (allegation G). This officer remains unidentified. § 87(2)(b) was transported to the 23rd Precinct, where he was questioned by officers. § 87(2)(b) allegedly asked one of the officers from the scene for medical attention while at the stationhouse, but medical attention was not provided (allegation I). § 87(2)(b) did not recall anything about what this officer looked like, and the officer remains unidentified. § 87(2)(b) was charged § 87(2)(b)

§ 87(2)(g)
It is recommended that allegations A and B be closed as **exonerated**. § 87(2)(g)

It is recommended that allegations C, D, E, and F be closed as **exonerated**. § 87(2)(g)
These allegations are subsumed under allegation G and closed as **officer(s) unidentified**. § 87(2)(b) alleged that he suffered a gash on his arm as a result of being struck with a radio or other blunt object. § 87(2)(g)

It is recommended that allegation H be closed as **unfounded**. § 87(2)(g)
It is recommended that allegation I be closed as **officer unidentified**.

This case was originally assigned to Investigator Emmanuel Fashakin. It was closed by the Board as complainant uncooperative on September 4, 2007. The case was re-opened by the Board at the request of the complainant on March 12, 2008. § 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a Hispanic man § 87(2)(b). He has brown hair and brown eyes.

IAB Complaint (encl. 3)

§ 87(2)(b) made a complaint to IAB on April 13, 2007. He stated that he double parked in front of a store on 112th Street between First and Second Avenue in Manhattan. He was approached by two unidentified men who attempted to go into his pocket. § 87(2)(b) "freaked out" and ran. He was then tackled and beaten up.

CCRB Interview (encl. 4)

§ 87(2)(b) was interviewed at Rikers Island on April 24, 2008.

At approximately 10:00PM on April 10, 2007, § 87(2)(b) stopped in front of a grocery store on East 112th Street between 1st Avenue and 2nd Avenue in Manhattan in order to purchase some juice and a pack of gum. A few minutes earlier, § 87(2)(b) had been at his aunt's house, located at § 87(2)(b). After leaving his aunt's house, § 87(2)(b) drove directly to the grocery store and parked his car nearby. § 87(2)(b) did not recall if his vehicle was double parked and stated that he believed he might have found a parking spot for the vehicle. The vehicle § 87(2)(b) was driving was a tan 2006 Cadillac CTS sedan owned by his wife, § 87(2)(b).

As he exited the grocery store and began walking to his vehicle, § 87(2)(b) observed a Hispanic man approaching him with his hand at his side as if he had a gun. He later learned that this man was a police officer. The officer stood 5'10" and was wearing a hooded sweatshirt and a winter hat. § 87(2)(g). § 87(2)(b) observed a gun at his side and immediately ran away out of fear, believing that the officer was a civilian about to rob him or shoot him.

§ 87(2)(b) ran approximately 40 to 50 feet, at which point he was punched in the side of the face and fell to the ground. § 87(2)(b) did not know who had hit him because by this time there were several officers on the scene. Prior to being punched, § 87(2)(b) did not hear any commands being directed at him. As he fell to the ground, officers that had gathered began punching and kicking § 87(2)(b). § 87(2)(b) "curled up" and covered his face. The officers, four in total, continued striking § 87(2)(b). It is unclear which officers allegedly struck § 87(2)(b). § 87(2)(g)

§ 87(2)(b) The top of § 87(2)(b)'s head was exposed as he curled up and he felt repeated blows to the top of his head. One of the officers had either a radio or a hard object and struck § 87(2)(b) on his left elbow which resulted in a gash. § 87(2)(b)'s left elbow had a visible one-inch keloid, which § 87(2)(b) stated was the scar from the hit.) While being struck by officers, § 87(2)(b) made no statements and did not attempt to strike officers. The officers placed § 87(2)(b) in handcuffs.

It was at this time that § 87(2)(b) realized the men were police officers. After he was placed in handcuffs, § 87(2)(b) was placed in a sitting position. One of the officers dragged § 87(2)(b) by his jacket in an attempt to lift him off the ground. As a result of being dragged, § 87(2)(b)'s palms were scraped on the ground and began bleeding. After he was lifted off the ground, § 87(2)(b) saw the four officers. § 87(2)(b) described these officers as Hispanic and white man. He was not able to provide additional details about their appearance.

A few minutes later, numerous officers responded to the scene and § 87(2)(b) was placed inside a police vehicle and transported to the 23rd Precinct. None of the responding officers witnessed the force used against § 87(2)(b). § 87(2)(b) was questioned at the 23rd Precinct stationhouse by an unidentified officer. He requested medical attention at some point, but could not specify whom he asked. § 87(2)(b) was not transported to the Hospital or given medical attention. He was held at the 23rd Precinct until he was transported to Manhattan Central Booking the next morning and arraigned. § 87(2)(b) was bailed out in § 87(2)(b), and went to § 87(2)(b) to seek medical attention after his release.

Results of Investigation

Police Officer Interviews

Overview

On April 10, 2007, Sgt. Jose Roman supervised an anti-crime team composed of PO Christopher Greiner, PO Joseph Curley, and PO Jose Toribio. They were working within the confines of the 23rd Precinct in an unmarked car. They were dressed in plainclothes.

PO Christopher Greiner

PO Greiner is a white man § 87(2)(b). He has brown hair and blue eyes.

Arrest Reports (encl. 16)

The arrest reports prepared for this incident state that § 87(2)(b) was arrested § 87(2)(b). They further state that he struck two police officers with a closed fist as they attempted to place him under arrest. It states that § 87(2)(b) was wanted on a parole violation. Physical force was used on § 87(2)(b) to overcome physical assault.

L.O.D. Injury Report Witness Statement (encl. 15)

PO Greiner prepared a witness statement in support of PO Toribio's request for line-of-duty injury designation. § 87(2)(b)

CCRB Interview (encl. 17)

At approximately 10:00PM on May 29, 2008, PO Greiner and his partners were doing vertical patrols in the vicinity of 112th Street and First Avenue in Manhattan. Upon exiting a building and returning to 112th Street between First and Second Avenue, they noticed a car that was double parked on the south side of 112th Street. No one was in the car and the engine was running. Officers were suspicious because no stores were open at 10:00PM. The four officers approached the vehicle and walked around it in order to check it out. A man approached the driver's side of the car, possibly from the basement area of one of the buildings. This man was identified by the CCRB as § 87(2)(b). § 87(2)(b) stated that it was his vehicle and reached for his back pocket, possibly to retrieve his identification. PO Greiner did not recall if he had asked § 87(2)(b) for his identification. PO Greiner noticed a knife clipped to § 87(2)(b)'s pocket and immediately attempted to grab his hand while telling § 87(2)(b) to move his hand away from his pocket. § 87(2)(b) swung his elbows at PO Greiner and fled. Officers pursued § 87(2)(b). When they caught up with him, § 87(2)(b) took a swing Sgt. Roman. Another pursuit, led by PO Greiner and PO Curley, followed. This pursuit lasted a few seconds. When PO Greiner and PO Curley caught up to § 87(2)(b) they were able to place handcuffs on him. § 87(2)(b) strenuously resisted arrest for approximately five minutes by punching, kicking, grabbing at officers, and pulling their hair. As a result of § 87(2)(b)'s earlier resistance, Sgt. Roman and PO Toribio were injured and went line-of-duty, meaning that they were unable to work. PO Greiner did not recall if § 87(2)(b) was punched, but stated that he was not dragged or struck with any objects.

PO Joseph Curley

PO Joseph Curley is a white man § 87(2)(b). He has brown hair and blue eyes.

L.O.D. Witness Statement (encl. 13)

PO Curley prepared a witness statement in support of Sgt. Roman's request for line-of-duty designation. § 87(2)(b)

Memobook (encl. 12)

PO Curley had memobook entries indicating that officers called for assistance at 10:00PM at East 112th Street and 2nd Avenue. § 87(2)(b) was arrested at 10:17PM.

CCRB Interview (encl. 14)

PO Joseph Curley was interviewed at the CCRB on March 24, 2009.

§ 87(2)(g)
PO Curley stated that PO Toribio and Sgt. Roman were injured in an initial scuffle with § 87(2)(b) prior to his flight. During this initial scuffle, PO Curley attempted to grab § 87(2)(b)'s arms, but was unable. § 87(2)(b) flailed his arms, kicking, and was trying to get away from officers. At some point, § 87(2)(b) and the officers went to the ground. § 87(2)(b) broke free and began running north through a nearby housing development to 113th Street. He then ran eastbound to 1st Avenue. PO Curley and PO Greiner caught up to § 87(2)(b) and tackled him. Another struggle ensued and the officers were able to place him under arrest. § 87(2)(b) had his arms tucked under him, and officers were worried that he was trying to retrieve a weapon. He also tried to strike officers at this point. PO Curley did not recall whether § 87(2)(b) was punched or what additional force was necessary to subdue him. He did not notice any injuries on him.

Sgt. Jose Roman

Sgt. Roman is a Hispanic man § 87(2)(b). He has brown eyes and is bald.

L.O.D. Injury Report (encl. 19)

The line-of-duty injury report for Sgt. Roman § 87(2)(b)

Firearms Discharge/Assault Report Worksheet (encl. 20)

An Assault Report Worksheet was prepared for this incident. It states § 87(2)(b) “punched/kicked” officers after being stopped. It further states that batons were not used. Under the section labeled “Self-defense technique used,” it states “take down.” § 87(2)(b)

Emergency Department After-Care Sheet (encl. 21)

§ 87(2)(b)

New York State Department of Labor – Injury and Illness Incident Report (encl. 22)

§ 87(2)(b)

Aided Report (encl. 23)

§ 87(2)(b)

CCRB Interview (encl. 24)

Sgt. Jose Roman was interviewed at the CCRB on February 10, 2009. § 87(2)(g)
Additional details about Sgt. Roman’s involvement in the incident are included below.

Upon noticing § 87(2)(b)'s car, Sgt. Roman told the operator of police car to drive around the block once and check it out. He was worried that the car could be stolen because it was unattended. Officers drove around the block and pulled up behind the Cadillac. PO Curley and Sgt. Roman went to investigate the inspections sticker of the car. PO Toribio and PO Greiner also got out of the car. Approximately two or three minutes later, a man, identified by the CCRB as § 87(2)(b) exited a nearby store. PO Toribio and PO Greiner were behind Sgt. Roman. They went to speak with him. Sgt. Roman could not hear what was said to § 87(2)(b). Sgt. Roman soon heard “scuffling” behind him and turned around to see PO Toribio

and PO Greiner struggling with § 87(2)(b) who was trying to get away from them. The struggle moved nearer to Sgt. Roman, at which point all four officers tried to subdue § 87(2)(b) by grabbing his hands. As the officers struggled with § 87(2)(b) they fell to the ground. As Sgt. Roman fell, he felt excruciating pain. He later learned that he had a broken bone in his finger. Sgt. Roman called for assistance and § 87(2)(b) broke loose and ran. Sgt. Roman was on the ground. PO Greiner and PO Curley pursued § 87(2)(b) who entered a nearby housing development. Additional units responded and Sgt. Roman was placed in an ambulance.

PO Jose Toribio

PO Toribio is a Hispanic man § 87(2)(b). He has black hair and brown eyes.

L.O.D. Injury Report (encl. 6)

§ 87(2)(b)

Firearms Discharge/Assault Report Worksheet (encl. 10)

§ 87(2)(g)

Emergency Department After-Care Sheet (encl. 9)

§ 87(2)(b)

New York State Department of Labor – Injury and Illness Incident Report (encl. 8)

§ 87(2)(b)

Aided Report (encl. 7)

§ 87(2)(b)

CCRB Interview (encl. 11)

PO Jose Toribio was interviewed at the CCRB on February 10, 2009. § 87(2)(g)

PO Toribio observed what appeared to be the silver handle of a knife protruding from the § 87(2)(b)'s waistband. The knife had a clip on it. PO Toribio told § 87(2)(b) to come to the rear of the car. PO Greiner was nearby. PO Toribio told § 87(2)(b) that he was a police officer and asked him whether it was his car. The man replied that it was his car, and then reached towards his waist. PO Toribio grabbed § 87(2)(b)'s right hand and said, "Hold on." § 87(2)(b) jerked his arm. PO Greiner grabbed § 87(2)(b)'s left arm, but could not maintain a grip on it. § 87(2)(b) pushed off of the officers and ran towards Sgt. Roman and PO Curley. A scuffle ensued as officers attempted to restrain § 87(2)(b). § 87(2)(b) was tall and muscular and this was a factor in the officers' inability to easily restrain him. § 87(2)(b) and the officers fell to the ground. § 87(2)(b) was wearing a jacket and was able to pull it off, shedding the officers, and run away. § 87(2)(b) headed towards the nearby housing developments. PO Toribio was the first officer to pursue § 87(2)(b). He jumped and grasped at § 87(2)(b)'s shirt. His finger became tangled in his shirt. PO Toribio felt severe pain in his left middle finger. He looked at his finger and noticed that it was dislocated. He popped it back into place. He did not see officers finally restrain § 87(2)(b) because he was injured.

Additional Officers Not Interviewed

§ 87(2)(g)

Both § 87(2)(b) and the officers interviewed stated that these officers did not respond until after the force was used. § 87(2)(g)

Police Department Documents

Roll Call (encl. 26)

The 23rd Precinct roll call confirms that the officers interviewed were working at the time of the incident.

Command Log (encl. 27)

The command log states that § 87(2)(b) was brought to the stationhouse at 10:40PM. His condition is listed as apparently normal. The command log states that § 87(2)(b) was apprehended in front of 310 East 113th Street in Manhattan.

SPRINT (encl. 25)

At 10:11PM, 23rd Precinct Anti-Crime reported that a police officer had a broken finger. At 10:17PM, § 87(2)(b) was under arrest. At 10:18PM he was transported to the stationhouse.

Arrest Photograph (encl. 28)

The arrest photograph of § 87(2)(b) does not show any obvious injuries.

Medical Records (encl. 29)

§ 87(2)(a) PBH §18(6)

Subject Officers' CCRB History (encl. 1)

PO Greiner has not had a CCRB allegation substantiated against him. He has been an officer for six years. PO Curley has had one CCRB allegation substantiated against him. In case number 200513891, the CCRB found that PO Curley refused to provide his name and shield number to a civilian. PO Curley was given instructions. He has been an officer for seven years. Sgt. Roman has not had a CCRB allegation substantiated against him. He has been an officer for 23 years. PO Toribio has not had a CCRB allegation substantiated against him. He has been an officer for six years.

Complainant's CCRB History (encl. 2)

§ 87(2)(b)

Complainant's Conviction History (encl. 30)

§ 87(2)(b) has not been convicted of a crime in New York City.

Disposition of Charges Related to Incident (encl. 30)

§ 87(2)(b)

Conclusions and Recommendations

Subject Officer Identification

Sgt. Roman, PO Greiner, PO Toribio, and PO Curley admitted their involvement in this incident. § 87(2)(g)

According to § 87(2)(b)'s statement, he was not initially stopped until he fled from in front of 310 East 112th Street.

§ 87(2)(g)

PO Greiner and PO Toribio admitted to using physical force in stopping § 87(2)(b). While § 87(2)(b) stated that physical force was used on him only after he fled from 310 East 112th Street, all four officers admitted to using physical force against § 87(2)(b) at this juncture, after the initial stop. After § 87(2)(b) fled to 310 East 113th Street, where he was apprehended, PO Greiner and PO Curley used physical force against him. § 87(2)(b) alleged that an officer punched him in the face and struck him with a radio. § 87(2)(b) did not see who did this, and no officers admitted to doing so. § 87(2)(g)

§ 87(2)(b) could not recall any details about the officer who refused to provide him with medical attention. § 87(2)(g)

Undisputed Facts

On April 10, 2007, at approximately 10:00PM, § 87(2)(b) parked his wife's car, which he left running, in front of 310 East 112th Street in Manhattan and entered a grocery store. Sgt. Roman, PO Toribio, PO Curley, and PO Greiner approached the car shortly thereafter. § 87(2)(b) exited the store and was approached by PO Toribio and PO Greiner, who grabbed § 87(2)(b). § 87(2)(b) fled and was apprehended by PO Greiner and PO Curley. As a result of this incident, Sgt. Roman and PO Toribio both were injured and went line-of-duty. § 87(2)(b) was treated for minor injuries § 87(2)(b).

Disputed Facts

§ 87(2)(g) § 87(2)(b) stated that his car was not double parked; § 87(2)(b) maintains that he did not know that the men who approached him were police officers; § 87(2)(b) made no mention of any initial struggle with officers and made reference to only one struggle; § 87(2)(b) stated that four officers used physical force against him immediately before he was placed in handcuffs, while officers maintain that Sgt. Roman and PO Toribio were incapacitated by injuries before § 87(2)(b) fled from East 112th Street; § 87(2)(b) stated that he was punched, kicked, and struck with a radio, § 87(2)(g) § 87(2)(b) claimed that an officer struck him with a radio, causing a gash on his elbow; § 87(2)(g)

Assessment of Evidence

In his initial complaint to IAB, § 87(2)(b) stated that he was double parked. § 87(2)(g) § 87(2)(b) claimed that he did not know that the man who approached him was a police officer. § 87(2)(g)

[REDACTED]

[REDACTED] § 87(2)(b) alleged that he was punched and kicked repeatedly, a claim that is not supported by either his arrest photograph or his medical records. [REDACTED] § 87(2)(b) stated that he suffered a gash on his elbow. The investigator who interviewed [REDACTED] § 87(2)(g) reported that this was a one-inch keloid scar. [REDACTED] § 87(2)(g)

§ 87(2)(g)

Allegation B – Abuse of Authority: In front of 310 East 112th Street in Manhattan PO Jose Toribio stopped § 87(2)(b)

Allegation C – Force: In front of 310 East 112th Street and 310 East 113th Street in Manhattan, PO Christopher Greiner used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation D – Force: In front of 310 East 112th Street in Manhattan, PO Jose Toribio used physical force against § 87(2)(b)

As with PO Greiner, PO Toribio admitted to grabbing § 87(2)(b)'s arm. § 87(2)(g) § 87(2)(b). PO Toribio also admitted involvement in an initial struggle to handcuff § 87(2)(b) but could not specify his precise role in this struggle. § 87(2)(g)

§ 87(2)(b) It is recommended that allegation D be closed as **exonerated**.
Allegation E – Force: In front of 310 East 112th Street in Manhattan, Sgt. Jose Roman used physical force against § 87(2)(b)

Sgt. Roman admitted involvement in the initial struggle to handcuff § 87(2)(b) It was during this struggle that he injured his finger. § 87(2)(g) § 87(2)(g) It is recommended that allegation E be closed as **exonerated**.

Allegation F – Force: In front of 310 East 112th Street and 310 East 113th Street in Manhattan, PO Joseph Curley used physical force against § 87(2)(b)

PO Curley admitted involvement in both struggles to handcuff § 87(2)(b) As above, § 87(2)(b) could not specify which officers used excessive force against him. § 87(2)(g) § 87(2)(g) It is recommended that allegation F be closed as **exonerated**.

Allegation G – Force: In front of 310 East 112th Street and 310 East 113th Street in Manhattan, officers used physical force against § 87(2)(b)

§ 87(2)(g) § 87(2)(b) stated that he was punched in the face, kicked and punched repeatedly, and dragged by officers. He did not see which officers allegedly used force against him, and none of the officers interviewed admitted to punching, kicking, or dragging him. It is recommended that allegation G be closed as **officer(s) unidentified**.

Allegation H – Force: In front of 310 East 113th Street in Manhattan, an officer struck § 87(2)(b) with a radio.

§ 87(2)(b) alleged that an officer struck him on the elbow with a radio or other blunt object, causing a severe injury to his elbow that resulted in a pronounced scar. This injury is not noted in § 87(2)(b)'s medical records. § 87(2)(g) It is recommended that this allegation be pleaded against an officer and closed as **unfounded**.

Allegation I – Abuse of Authority: At the 23rd Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that he asked an officer for medical treatment. § 87(2)(b) could not specify which officer he asked for medical treatment. It is recommended that allegation I be closed as **officer(s) unidentified**.

Investigator:
Greg Bok
Supervisor:
Reviewed by:
Reviewed by:

Date:
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